

25NNCV07126 25NNCV07126

County: los-angeles

Division: Civil Law and Motion

Department: D

Hearing date: 2026-08-14

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=GLN%2CD%2C08%2F14%2F2026

Source SHA-256: 65bdcae18bb548850ff4ebaf77dae6f5a283f4e5414d9803c2715f69bc2d465d

Case Number: 25NNCV07126 Hearing Date: August 14, 2026 Dept: D

TENTATIVE RULING

Calendar: 2

Date: August 14, 2026

Case No: 25NNCV07126 Trial Date: Not yet set

Case Name: Ghaffari v. Nationstar Mortgage LLC, et al.

DEMURRER; JOINDER TO DEMURRER

[CCP § 430.10 subds. (e) and (f)]

Moving Party: Defendants, Nationstar Mortgage LLC dba Mr. Cooper, U.S. Bank, N.A., as trustee for Merrill Lynch First Franklin Mortgage Loan Trust 2007-1, and Mortgage Electronic Registration Systems, Inc., joinder by Cyprex Services, LLC

Responding Party: Plaintiff, Linda Ghaffari

RELIEF REQUESTED:

Order granting Cyprex Services, LLC's joinder to the demurrer.

Sustain demurrer to First Amended Complaint.

CAUSES OF ACTION: from First Amended Complaint

1) Quiet Title

- 2) Wrongful Foreclosure
- 3) Cancellation of Instruments
- 4) Violation of California Homeowner Bill of Rights
- 5) Negligent Misrepresentation
- 6) Unfair Business Practices [Bus. & Prof. Code § 17200]

REQUEST FOR JUDICIAL NOTICE:

The Court may take judicial notice of “[o]fficial acts of the legislative, executive, and judicial departments of the United States and of any state of the United States” and of [f]acts and propositions that are not reasonable subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy.” (Evidence Code, § 452, subds. (c) and (h).)

The court, however, may not take judicial notice of the truth of the contents of the documents. (Herrera v. Deutsche Bank National Trust Co. (2011) 196 Cal.App.4th 1366, 1375.) Documents are only judicially noticeable to show their existence and what orders were made such that the truth of the facts and findings within the documents are not judicially noticeable. (Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort (2001) 91 Cal.App.4th 875, 885.)

Pursuant to Defendants’ request, the Court takes judicial notice of the following:

- 1) A true and correct copy of the Deed of Trust recorded February 21, 2007, in the Official Records for the County of Los Angeles, as document no. 20070369466
- 2) A true and correct copy of the Corporate Assignment of Deed of Trust recorded September 26, 2019, in the Official Records for the County of Los Angeles, as document no. 20191014773
- 3) A true and correct copy of the Substitution of Trustee recorded on January 4, 2024, in the Official Records for the County of Los Angeles, as document no. 20240006732
- 4) A true and correct copy of the Notice of Default recorded April 16, 2024, in the Official Records for the County of Los Angeles, as document no. 20240247869
- 5) A true and correct copy of the Notice of Trustee’s Sale recorded April 7, 2025, in the Official Records for the County of Los Angeles, as document no. 20250220382
- 6) A true and correct copy of the Trustee’s Deed Upon Sale recorded September 4, 2025, in the Official Records for the County of Los Angeles, as document no. 20250602008.

SUMMARY OF FACTS:

The FAC alleges that Linda Ghaffari ("Plaintiff") is the owner of real property located at 11323 Blythe Street, in Sun Valley, CA. Plaintiff alleges that, Defendants improperly rely on certain recorded assignments, substitutions of trustee, and foreclosure-related instruments to support their claimed authority to enforce the loan on the property and conduct foreclosure proceedings. Plaintiff alleges that Defendants did not possess lawful authority to enforce the debt and direct the foreclosure.

JOINDER:

Defendant Cyprex Services, LLC ("Cyprex") filed a joinder to the demurrer filed by

Nationstar Mortgage LLC dba Mr. Cooper, ("Nationstar"), U.S. Bank, N.A., as trustee for

Merrill Lynch First Franklin Mortgage Loan Trust 2007-1 ("US Bank") and Mortgage Electronic

Registration Systems, Inc ("MERS"). Cyprex is similarly situated with Nationstar, US Bank

and MERS regarding the issues presented in the demurrer. The allegations to the causes of

action are identical as to all Defendants.

Thus, Cyprex's joinder is GRANTED.

DEMURRER:

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747; CCP, § 430.10, subd. (e).)

To sufficiently allege a cause of action, a complaint must allege all the ultimate facts—that is, the facts needed to establish each element of the cause of action pleaded. (Committee on Children's Television, Inc. v. General Foods Corp. (1983) 35 Cal.3d 197, 212, superseded by statute as stated in Branick v. Downey Savings & Loan Assn. (2006) 39 Cal.4th 235, 242.) "[E]ach evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 872.)

In testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 966-67.) Courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228, disapproved on other grounds, Jones v. Lodge at Torrey Pines Partnership (2008) 42 Cal.4th 1158, 1162.) A demurrer, however, "does not admit contentions, deductions or conclusions of fact or law." (Daar v. Yellow Cab Co. (1967) 67 Cal.2d 695, 713.)

A demurrer for uncertainty lies where the pleading is uncertain, ambiguous, or unintelligible. (CCP, § 430.10, subd. (f).)

"A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (Khouri v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616 [disapproved on other grounds].) As a result, a special demurrer for uncertainty is not intended to reach failure to incorporate sufficient facts in the pleading, but it rather is directed only at uncertainty existing in the allegations already made. (People v.

Taliaferro (1957) 149 Cal.App.2d 822, 825, disapproved on other grounds in Jefferson v. J.E. French Co. (1960) 54 Cal.2d 717, 719-720 [statute of limitations question].)

Where a complaint is sufficient to state a cause of action and to apprise a defendant of issues he is to meet, it is not properly subject to a special demurrer for uncertainty. (Gressley v. Williams (1961) 193 Cal.App.2d 636, 643 ["A special demurrer [for uncertainty] should be overruled where the allegations of the complaint are sufficiently clear to apprise the defendant of the issues which he is to meet"].)

Standing

Defendants demur to the entire FAC on grounds that Plaintiff lacks standing to challenge the 2019 Assignment of Deed of Trust. The FAC alleges that Defendants did not have authority to direct or authorize foreclosure and failed to establish a complete chain of authority demonstrating that Defendants were entitled to enforce the deed of trust. (FAC, ¶¶ 13-23.) All of Plaintiff's causes of action are premised on the allegation that the Defendants lacked authority to foreclose on the property. (FAC, ¶¶ 39-61.)

A borrower has standing to challenge the assignment of his or her note and deed of trust if the alleged defect would render the assignment void. (Yvanova v. New Century Mortgage Corp. (2016) 62 Cal.4th 919, 940.)

Here, the FAC alleges that "[a]t no time did any Defendant produce, record, or identify a specific instrument demonstrating that the entity directing foreclosure held the beneficial interest and expressly authorized each subsequent actor." (FAC, ¶ 23.) The FAC further alleges that "No complete and continuous chain of authority has been demonstrated from the original beneficiary to the foreclosing entity." (FAC, ¶ 23.1.)

However, the FAC fails to allege any specific defect in the assignment that would render it void. The FAC does not allege what purported defect existed, how the assignment was defective, or why any such defect would invalidate the assignment. Mere recitation that the Defendants did not have legal authority to assign the note and initiate foreclosure is not a fact but a legal conclusion. Moreover, the documents recorded in Los Angeles County, of which the Court has taken judicial notice, demonstrate Defendants' legal chain of ownership and assignment, and their legal authority to foreclose on the property. (RJN, Exs. 1-6.) Below is a summary of the recorded documents.

Deed of Trust identifying MERS as the beneficiary under the Deed of Trust for the subject property on February 14, 2007. (RJN, Ex. 1.) On September 26, 2019, MERS assigned the Deed of Trust to U.S. Bank National Association, as trustee, successor in interest to Bank of America, National Association, as trustee, successor by merger to Lasalle Bank, National Association, as trustee for Merrill Lynch First Franklin Mortgage Loan Trust, Mortgage Pass-Through Certificates, Series 2007-1. (RJN, Ex. 2.) On January 4, 2024, U.S. Bank substituted Clear Recon Corp. as successor trustee under the Deed of Trust with the powers of the original trustee. (RJN, Ex. 3.) On April 16, 2024, Clear Recon Corp. filed a Notice of Default in the Los Angeles County Recorder's Office. (RJN, Ex. 4.) On April 7, 2025, Clear Recon Corp. filed a Notice of Trustee's Sale and on September 4, 2025, Clear Recon Corp. filed a Trustee's Deed Upon Sale. (RJN Exs. 5-6.)

Between the limited factual allegations in the FAC and the record provided by the judicially noticed materials, Plaintiff fails to sufficiently allege that Defendants lacked authority to foreclose on the property or that there was a defective chain of title or void assignment.. Accordingly, the FAC fails to allege facts establishing that Plaintiff has standing to challenge the assignment.

Thus, the demurrer is SUSTAINED.

Although leave to amend should be freely granted, "[t]he burden is on the plaintiff to demonstrate the manner in which the complaint can be amended. (Ross v. Creel Printing & Publishing Company (2002) 100 Cal.App.4th 736, 748.) "To carry its burden, plaintiff must show the manner it can amend its complaint and demonstrate how that amendment will change the

legal effect of the pleading.” (Community Assisting Recovery, Inc. v. Aegis Security Insurance Co. (2001) 92 Cal. App. 4th 886, 895, citation omitted.)

Plaintiff has not demonstrated how her lack of standing could be cured through further amendment. The Court previously sustained Defendants’ demurrer to the Complaint on these same grounds, and afforded Plaintiff an opportunity to amend. (3/06/2026 Minute Order [“In any amended pleading, Plaintiff will be strictly required to allege facts demonstrating that she has standing to bring this action.”].) However, the amended complaint does not cure the standing deficiency.

Accordingly, the demurrer is SUSTAINED WITHOUT LEAVE TO AMEND.

RULING:

Defendant Cyprexx Services, LLC’s Joinder is GRANTED.

Defendants Nationstar, U.S. Bank, MERS and Cyprexx’s Demurrer is SUSTAINED, WITHOUT LEAVE TO AMEND.

Counsel for moving parties is ordered to prepare a Judgment of Dismissal as to the moving parties and submit it on eCourt by 2:00 PM today in accordance with this order.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.